

## 25PSCV03534 25PSCV03534

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-31

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Citibank, N.A. v. MJCH Logistics,  
et al., Case No. 25PSCV03534

### ORDER ON MOTIONS TO BE RELIEVED AS COUNSEL

#### 1. Counsel for Defendant MJCH Logistics'

(i.e., Law Offices of Michael A. Peart) Motion to be Relieved as Counsel is GRANTED, contingent upon satisfactory resolution of the notice concern

identified herein and effective upon

the filing of the proof of service reflecting

service of the signed order upon Client at Client's last known address. The

Court will set an Order to Show Cause Re: Representation of Corporation for September

24, 2026, at 8:30 a.m., the same date and time as the Case Management

Conference.

#### 2. Counsel for Defendant Mary Hui's (i.e.,

Law Offices of Michael A. Peart) Motion to be Relieved as Counsel is GRANTED, contingent upon satisfactory resolution of the notice concern identified herein and effective upon the filing of the proof of

service reflecting service of the

signed order upon

Client at Client's last known address.

### Background

Plaintiff Citibank, N.A. ("Plaintiff") alleges as follows: On July 7, 2021, MJCH Logistics

("MJCH") executed and delivered to Plaintiff a Commercial Credit

Application/Agreement wherein MJCH requested a business credit account from

Plaintiff in the amount of \$100,000.00; this request was approved by Plaintiff on August 3, 2021. Mary Hui ("Hui") executed a personal guaranty in connection with the above. On May 4, 2025, MJCH failed to make payments due and owing.

On

September 30, 2025, Plaintiff filed a complaint, asserting causes of action against MJCH, Hui and Does 1-100 for: (1) Breach of Written Agreement, (2) Breach of Personal Guaranty, (3) Money Lent, and (4) Account Stated.

On

December 10, 2025, MJCH's and Hui's defaults were entered.

On

June 9, 2026, the Court granted MJCH's and Hui's Motion to Set Aside Default.

A

Case Management Conference is set for September 24, 2026.

Discussion

The Law Offices of Michael A. Peart seeks to be relieved as counsel of record for MJCH and Hui ("Clients").

Notice

At the

outset, the Court observes that the June 12, 2026 and June 16, 2026 proofs of service accompanying Motions #1 and #2, respectively, reflect electronic service on Plaintiff only. Although moving counsel filed (and mail-served on Plaintiff's counsel and on Clients) a "Notice of Hearing" on July 17, 2026 and represented in his declaration accompanying the motion that Clients were mail-served with the motion, he has not filed a proof of service reflecting that Clients were served with the motion.

The

following analysis, then, is contingent upon moving counsel filing a proof of service reflecting that Clients were served with the motion in compliance with Code of Civil Procedure section 1005, subdivision (b) at or before the time of the hearing.

Merits

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398.)

California

Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (made on the Notice of Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules Court, rule 3.1362(e).)

Attorney Michael A. Peart ("Peart") represents that Clients "repeatedly reject[] legal advice and insist[] on pursuing positions counsel cannot ethically advance."

Peart

states that he has served Clients by mail at their respective last known addresses with copies of the motion papers served with his declaration and that he has confirmed within the past 30 days that the addresses are current by mail, return receipt requested.

The

Court determines that the requirements of Rules of Court Rule 3.1362 enumerated above have been sufficiently met.

Accordingly,

the motion is granted, effective upon the filing of the proof of service reflecting service of the signed order upon Clients at Clients' last known address(es).

The Court will set an Order to Show Cause Re:

Representation of Corporation for September 24, 2026, at 8:30 a.m. The Court directs counsel to provide notice of the OSC to Clients.